



Trinidad and Tobago Republic Act 1976

1976 CHAPTER 54

An Act to make provision in connection with Trinidad and Tobago becoming a republic within the Commonwealth.
[26th October 1976]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Operation of
existing law.

1.—(1) Subject to subsection (3) below, all law to which this section applies, whether being a rule of law or a provision of an Act of Parliament or of any other enactment or instrument whatsoever, which is in force on such date as Her Majesty may specify by Order in Council (in this Act referred to as “the appointed day”), or, having been passed or made before that date, comes into force thereafter, shall, unless and until provision to the contrary is made by Parliament or some other authority having power in that behalf, have the same operation in relation to Trinidad and Tobago, and persons and things belonging to or connected with Trinidad and Tobago, as it would have had apart from this subsection if Trinidad and Tobago had not become a republic.

(2) This section applies to law of, or of any part of, the United Kingdom, the Channel Islands and the Isle of Man and, in relation only to any enactment of the Parliament of the United Kingdom or any Order in Council made by virtue of any such enactment whereby any such enactment applies in relation to Trinidad and Tobago, to law of any other country or territory to which that enactment or Order extends.

(3) Notwithstanding anything in subsections (1) and (2) above, the provisions set out in Appendix C to Schedule 1 to the Immigration Act 1971 (whereby a person becoming a citizen of the United Kingdom and Colonies by registration is in certain circumstances required to take an oath of allegiance) shall have effect in relation to citizens of Trinidad and Tobago as if subsection (1) above had not been enacted. 1971 c. 77.

(4) This section shall have effect from the appointed day.

2.—(1) Her Majesty may by Order in Council confer on the Judicial Committee of the Privy Council such jurisdiction and powers as may be appropriate in cases in which provision is made by the law of Trinidad and Tobago for appeals to the Committee from courts of Trinidad and Tobago. Judicial Committee of Privy Council.

(2) Any Order in Council under this section may contain such incidental and supplemental provisions as appear to Her Majesty to be expedient.

(3) Any such Order in Council may contain such transitional provisions as appear to Her Majesty to be expedient—

(a) in relation to appeals in which the records have been registered in the Office of the Judicial Committee on or before the appointed day; and

(b) in relation to petitions for leave to appeal filed in that Office on or before that date.

(4) Except so far as otherwise provided by or in accordance with an Order in Council under this section, and subject to such modifications as may be so provided, the Judicial Committee Act 1833 shall have effect in relation to appeals in respect of which jurisdiction is conferred under this section as it has effect in relation to appeals to Her Majesty in Council. 1833 c. 41.

(5) An Order in Council under this section may be varied or revoked by a subsequent Order in Council.

3. This Act may be cited as the Trinidad and Tobago Republic Act 1976. Short title.